WILLIAS MADZIMURE

Versus

THE AUDITOR GENERAL

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 25 September 2025 & 28 April 2026

Court application for a declaratory order

T. Biti for the applicant
B. Maunze for the respondent

DUBE-BANDA J:

[1] This is an application for a declaratory order. The applicant describes himself as an adult Zimbabwean, a human rights activist who believes in constitutionalism, the rule of law, and the notion of legality. He contends that he has been a member of parliament for Kambuzuma Constituency from 2000 to 2018. The respondent is the Auditor General of Zimbabwe, whose office is established in terms of s 309 of the Constitution of Zimbabwe Amendment (No. 20) Act, 2013 ("the Constitution").

[2] The applicant seeks a declaratory order and consequential relief couched in the following terms:

a) That the respondent's failure to audit and publish the Appropriation Accounts of the Zimbabwe Election Commission for the financial years 2021, 2022, and 2023 is a breach of ss 5, 6, 7, and 18 of the Audit Office Act [*Chapter 22:18*].
b) The respondent be and is hereby ordered to audit and publish the appropriation account of the Zimbabwe Election Commission for the financial years 2021, 2022, and 2023 within six months of the date of this order.
c) The respondent shall pay the costs of suit.

[3] The application is opposed.

Preliminary objection

[3] In his heads of argument, the applicant took a preliminary objection, contending that the respondent did not file proof of service of its opposing affidavit in terms of r 59(8) of the High Court Rules, 2021. At the hearing, the applicant did not persist with this preliminary objection. I take it that the objection was abandoned and no further reference shall be made to it in this judgment.

The applicant's case

[4] The applicant contends that, in terms of the requirements of the law, the respondent is obliged to audit the national accounts of every public entity and ministry in Zimbabwe. After examining the accounts of every public body and entity, it shall submit to the Minister no later than 30 June each year a report of the outcome of the examination of the accounts. It is averred that in respect of the financial years 2021, 2022, and 2023, the respondent failed to audit and publish the audited accounts for the Zimbabwe Election Commission ("ZEC") as required by the law. It is in this regard that the applicant seeks an order that the respondent's actions and omissions are a breach of s 6 and s 10 of the Audit Office Act [*Chapter 7:06*].

[5] It was contended that on 24 June 2023, the respondent submitted to the Minister the 2021 Audit Report. It was submitted that the Audit Report did not contain the 2021 Appropriation Accounts for ZEC (Vote 32"). On 20 March 2023, the respondent presented to the Minister a Report on Appropriation and Accounts in Arrears as at 31 December 2021. It is said the report was an attempt to provide the gaps arising out and from the original 2021 Report. It was contended that even the Supplementary Arrears Report for 2021 did not contain the Audited Reports for ZEC. It was argued that the respondent's failure to audit and publish the Audited Report for ZEC is a breach of the law, and in particular s 5, s 6, and s 10 of the Audit Office Act.

[6] It was further contended that the respondent completed her report for 2022 in 2023. It was presented on 28 Augst 2023 for onward transmission to Parliament. It was argued that the Report was ultra vires s 309(2 of the Constitution in that it failed to provide the Appropriation Accounts for certain Votes and Ministries, including ZEC It was contended that the failure to audit and publish the Audited Report for ZEC is a breach of the law, in particular s 5, s 6, and s 10 of the Audit Office Act.

[7] It was contended further that on 8 July 2024, the Minister tabled the respondent's 2023 Appropriation Account Report. The Report was supposed to cover the appropriation accounts for 2023. The Appropriation Account contained many missing Votes, including the Vote for ZEC. It was submitted that the omission of the audited accounts for ZEC was deliberate and intentional. It was contended further that even in the Arrears Report for 2022 contained in the 2023 Audit Report, the report for ZEC was not published. It was said in her Status of Accounts Report that the respondent explained the status of Votes that include ZEC, which is Vote 32, and she acknowledged having received the Audited Reports of ZEC on 29 February 2024, but states that the audit was in progress. It was contended that this means the audit statements of ZEC were received timeously on 29 February 2024, and the respondent failed to publish the same by June 2024 as is required by the law. The applicant sought that the relief sought be granted as prayed for in the draft order.

The respondent's case

[8] The respondent contended that it is incorrect that it failed to audit and publish the ZEC's Appropriation Account (Vote 32) for the years 2021, 2022, and 2023. It was submitted that for the year ending 31 December 2021, the respondent issued two reports, the Main Report and the Arrear Report. The Main Report did not contain a report for all the Appropriation Accounts, and an Arrear Report had to be issued to cater for the Accounts that could not find their way in the Main Report. The respondent avers that usually the Annual Audit Report is compiled when audit s for some Appropriation Accounts will either not have commenced or will be in progress because of circumstances beyond its control. The audit process for the year ending 31 December 2021 was mainly affected by Covid 19; as a result, an arrear report was issued. The ZEC's Appropriation Account could not find its way in the 2021 main report. It is said it was published in the Arrear Annual Report.

[9] It was further contended that for both 2021 and 2022, the respondent's opinion for ZEC's Appropriation Account is unqualified. As for the year ending 31 December 2023, it was submitted that the respondent reported on the status of ZEC's Appropriation Account. The point was made that the audit for ZEC's Account was still in progress at the time. It was submitted that this Account and any other outstanding accounts for the year 2023 will be

contained in the Annual Audit for the year ending 31 December 2024, which is set to be submitted to the Minister not later than 30 June 2025.

[10] It was submitted that the applicable practice is that an Appropriation Account which cannot be published in its appropriate report for a particular year, will be published in an arrear report or in the report for the subsequent year. The respondent submitted that it has been brought to the attention of Parliament, in terms of s 10 of the Audit Act, that the issue of Appropriation Accounts not included in each report and advised that they will be subsequently reported in the next report. The respondent sought that the application be dismissed on a legal practitioner and client scale.

The law and the facts

[11] The applicant seeks a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*], which states as follows:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

[12] The guiding principles on the exercise by the High Court of its powers to grant declaratory orders were set out in *Johnsen* v *Agricultural Finance Corporation* 1995 (1) ZLR 65 (SC). In *Mpukuta* v *Motor Insurance Pool & Ors* 2012 (1) ZLR 192 (H) at p 192E-G, this court per NDOU J held that;

> "The condition precedent to the grant of a declaratory order is that the applicant must be an interested person in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must relate to an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated to such interest. That is the 1st stage in the determination of the court. At the second stage of the enquiry, it is incumbent upon the court to decide whether or not the case in question is a proper one for the exercise of its discretion under s14 of the High Court Act [Chapter 7:06]. In this regard some tangible and justifiable advantage in relation to the applicant's position, with reference to an existing, future or contingent legal right or obligation, must appear to flow from the grant of the declaratory order. See also *Munn Publishing (Pvt) Ltd* v *ZBC* 1994 ZLR 337 (S)

[13] The jurisprudence shows that our courts have adopted a two-part test in deciding whether to grant a *declaratur* in terms of s 14 of the High Court Act. First, is the applicant a person interested in an existing, future, or contingent right or obligation? If so, is the case a proper one for the court to exercise its discretion to grant declaratory relief? See *Dongo* v *Naik & Ors* 2020 (1) ZLR 647 (S) at 651 A-B; *Zvomatsayi & Ors* v *Chitekwe No & Anor* 2019 (3) ZLR 990 (H). *Zvomatsayi & Ors* v *Chitekwe No & Anor* 2019 (3) ZLR 990 (H).

[14] The first issue for determination is whether the applicant has an interest as envisaged in s 14 of the High Court Act and the jurisprudence established in case law. That the applicant has an interest in this matter has not been contested. To establish his interest, he submitted that he is a human rights activist who believes in constitutionalism and the rule of law. He served as a member of Parliament for the Constituency of Kuwadzana up until 2023. During his tenure of parliament, he served as a member of both the Public Accounts Committee and Budget Committee. He is a member of Transparency International Zimbabwe. He is the current secretary of the Zimbabwe Chapter of the African Parliamentarians Network Against Corruption ("APNAC"). It was averred that APNAC was created on 9 February 1999 by the African Union as a platform for Parliamentarians in promoting the fight against corruption. Over the years, he alleges that he has relied on Audit Reports to hold the Executive to account, and to understand the way the Public Fund is used in Zimbabwe. He contended that as a citizen, he has a direct interest in the respondent's Audit Reports, particularly the Audit Reports for ZEC, because of the recent allegations made against it.

[15] The applicant set out in his founding affidavit the facts upon which his interest in this matter is premised. In my considered view, all those facts referred to above, cumulatively and objectively viewed, qualify the applicant as an interested party within the meaning of s 14 of the High Court Act. A combination of all these facts demonstrates to me that the applicant has an interest in the Audit Reports of ZEC. I have therefore arrived at the conclusion that the applicant has shown that he does have an interest in the matter and therefore has the necessary *locus standi* to bring the application.

[16] I now need to consider the inquiry whether the court must consider it appropriate to grant the declaratory order in the circumstances of this case. The applicant seeks a declaratur that the respondent's failure to audit and publish the appropriate accounts of ZEC for the

years 2021, 2022, and 2023 is a breach of ss 5, 6, 7, and 10 of the Audit Office Act. And that the respondent be ordered to audit and publish the appropriation account for ZEC for the financial years 2021, 2022, and 2023 within six months of the date of the order. In this matter, the court is required to embark on two inquiries, the first is whether it has jurisdiction to grant the relief *sought* by the applicant. If the answer to the first inquiry is in the affirmative, the second is whether, on the facts, the applicant has made a case for the relief sought.

[17] Transparency and accountability are core values entrenched in the Constitution. These values are recognized throughout the Constitution and imposed upon the organs of state and all public functionaries. These constitutional imperatives are given pride of place among the other founding values. History has it that the principles of public accountability and transparency have been recognized since the existence of institutions of government in ancient times. Aristotle in "The Politics" said the following about public accountability and transparency:

> "To protect the treasury from being defrauded, let all public money be issued openly in front of the whole city, and let copies of the account be deposited in the various wards . . ."

[18] The total legal picture of the Constitution and Audit Office Act shows that the Auditor General has an obligation to audit the accounts, financial systems, and financial management of all departments, institutions, and agencies of government. Section 298(1) of the Constitution says i*nter alia that* transparency and accountability must guide all aspects of public finance in Zimbabwe, public funds must be expended transparently, financial management must be responsible, and fiscal reporting must be clear. The office of the Auditor General is created in terms of s 309 of the Constitution, which provides, *inter alia,* that the functions of the Auditor-General are to audit the accounts, financial systems and financial management of all departments, institutions and agencies of government. It is apparent that the office of the Auditor General was created to strengthen transparency and accountability in the management of public funds in line with the values inherent in the Constitution.

[19] The Audit Office Act breaks down the duties of the Auditor General into tangible specifics. In this regard, s 5(2) of the Act says:

"Subject to section 106 of the Constitution, the duties of the Comptroller and Auditor-General shall be—

(a) to examine, inquire into and audit accounts in terms of section 6;

(b) to satisfy himself or herself in terms of section 7 as to the safeguarding of public moneys and State property;

(c) to prepare and submit reports in terms of Part III;

(d) to do any other thing required of him or her by or under this Act or any other enactment.

[20] Section 6 of the Act provides thus:

(1) In addition to auditing the accounts referred to in section 106(1) of the Constitution, the Comptroller and Auditor-General—

(a) shall, on behalf of the House of Assembly, audit the accounts of any public entity, or designated corporate body;

(b) may carry out examinations into the economy, efficiency and effectiveness with which any Ministry, public entity, local authority, designated corporate body, statutory fund or other body has used public resources in discharging its functions.

(2) Where, by virtue of the proviso to section 106(1) of the Constitution, the Comptroller and Auditor-General does not examine or audit any particular account or fund, moneys held in that account or fund shall be regarded as not being public moneys for the purposes of this Act.

[21] Section 10 of the Act says:

"(1) The Comptroller and Auditor-General, after examining the accounts transmitted to him or her in terms of section 35(6) and (7) of the Public Finance Management Act [*Chapter 22:19*], and the accounts of any public entity, designated corporate body or statutory fund, and after signing a certificate recording the result of his or her examination, shall—

(a) prepare and submit to the Minister, not later than the 30th of June in each year, a report on the outcome of his or her examination and audit of the accounts referred to him or her in terms of section 6(1); and

(b) transmit to the appropriate Minister his or her certificate upon his or her examination and audit of such accounts, together with any report which he or she may consider necessary.

(2) The Comptroller and Auditor-General shall set out in his or her annual report—

(a) if, in his or her opinion, any payment out of public moneys which has been made in terms of the Public Finance Management Act [*Chapter 22:19*], to any Minister, Deputy Minister or other member of Parliament is one on which the Comptroller and Auditor-General should report to Parliament, a statement showing the name of the Minister, Deputy Minister or member receiving such payment, the total amount received and the service in respect of which the payment was made;

> (b) any other matters relating to the audit of public accounts which the Comptroller and Auditor-General thinks should be brought to the attention of Parliament.

[22] In ss 5(2), 6 and 10, in reference to the duties of the Auditor General, there is the use of the word "shall" which, generally, is indicative of a peremptory meaning. See *Kuhne and Nagel (Pty) Ltd v Elias and another* 1979 (1) SA 131 (T) at 133. Where in a written law the word "shall" is used in conferring a function, such word shall be interpreted to mean that the function so conferred must be performed. In addition, the cumulative effect of the use of the word "shall" is underscoring and demonstrating the obligations imposed on the Auditor General by the law giver.

[23] The respondent argued that in the exercise of her constitutional obligations, she has complete discretion in the discharge of her duties. Reliance for this proposition is placed on s 5(1) of the Audit Office Act, which says:

> "Subject to any duty imposed on him or her by any enactment, the Comptroller and Auditor-General shall have complete discretion in the discharge of his or her functions and, in particular, in determining whether to carry out any examination in terms of this Act and as to the manner in which any such examination is carried out." (My emphasis).

[24] The view I take is that the respondent misconstrued the character and ambit of the discretion accorded to her office by the law. The respondent's discretion is limited; it does not permit her to refrain from auditing the accounts, financial systems, and financial management of all departments, institutions, and agencies of government. The discretion must be read in the context, that s 5(1) of the Act must not be read in isolation; it must be interpreted in its context, which includes intra-textual context as well as extra-textual context. The bigger picture includes the Constitution and all other provisions of the Act and relevant legislation. This explains the reason s 5(1) starts with the phrase "Subject to any duty imposed on him or her by any enactment", which means the discretion given is limited by the provisions regarding the Auditor General's duties provided for in the Constitution, Audit Office Act, and the Public Finance Management Act [*Chapter* 22:19] and other relevant legislation. In fact, s 311 of the Constitution makes this position very clear, it says:

> "In the exercise of his or her functions the Auditor-General is independent and subject only to the law." (My emphasis).

[25] Section 311 of the Constitution shows that the discretion referred to in s 5(1) is subject to the law. Her discretion is limited to the modalities, systems, and strategies she uses in the audit processes. In that circumscribed terrain, she has complete discretion in the discharge of her duties. Otherwise, any other interpretation will render nugatory the intention of the lawgiver and the requirements of the law. Therefore, the Auditor General has a constitutional and statutory obligation to audit accounts of public entities and ministries in this country.

[26] The Auditor General is exercising public power. The exercise of public power must comply with the law and the doctrine of legality. The doctrine of legality, which is an incident of the rule of law, is one of the controls through which the exercise of public power is regulated. Public power must be exercised in compliance with the law and within the boundaries set by the law. Legality requires public officials to act in accordance with the law and in a manner consistent with the Constitution and empowering legislation. The principle of legality limits public officials in that they may exercise no power and perform no function beyond that conferred upon them by law. In the execution of her duties, the Auditor General exercises public power, and the exercise of that power is subject to judicial control within the framework of the law. The legality principle acts as a safety net to give the courts some degree of control over the exercise of public power. see *Minister of Health NO v New Clicks SA (Pty) Ltd & others* 2006 (2) SA 311 (CC) para 614. It is in this respect that the court has jurisdiction to adjudicate this matter. However, a caution must be sounded that it is important for the court in an application like this to take care not to usurp the functions of the Auditor General. A court should be careful not to attribute to itself superior wisdom in relation to matters legislatively entrusted to administrative bodies. It must give due weight to findings of fact and policy decisions made by those with expertise and experience in the field. See *Bato Star Fishing (Pty) Ltd* v *Minister of Environmental Affairs* 2004 4 SA 490 (CC); *Kirstein* v *Registrar General & Ors* 2019 (3) ZLR 1275 (H); *Premier of Mpumalanga* v *Executive Committee of State-aided Schools, Eastern Transvaal* 1999 2 SA 91 (CC) para 51. In essence, a court must exercise appropriate deference in such matters.

[27] I now turn to the question whether, on the facts, a case has been made for the relief sought by the applicant. The applicant's case is that the respondent failed to audit and publish

appropriation accounts for ZEC for the years 2021, 2022, and 2023. The facts show that for the year 2021, the respondent issued two reports, i.e., the Main Report and the Arrear Report. The Mian Report did not contain the ZEC Account; however, it is contained in the Arrear Report. For both 2021 and 2022, the respondent's opinion for the ZEC's Appropriation Account is unqualified. When an account is reported as unqualified, it means that its financial statements contain no material misstatements. In other words, ZEC's Appropriation Account had no reportable issues for the respondent's 2021 and 2022 Annual Audit Reports. The fact that the respondent employed the "unqualified" type of auditing is an exercise of discretion allowed by the law. In fact, this is the kind of discretion permitted by s 5 (1) of the Audit Office Act. Therefore, it is factually incorrect that the respondent failed to audit and publish the ZEC's Appropriation Account for the years 2021 and 2022.

[28 In respect of the year ending 31 December 2023, the respondent reported on the status of ZEC's Appropriation Account, and the report was that the audit was in progress. In the opposing affidavit, the respondents contended that this Account will be contained in the Annual Report for the year ending 31 December 2024, which is supposed to be submitted to the Minister no later than 30 June 2025. It is not like the respondent has refused to audit the account; it is being audited. The view I take is that it will be an overreaching and impermissible intrusion on the discretion of the Auditor General for the court to find fault with this position. See *Kirstein* v *Registrar General & Ors* 2019 (3) ZLR 1275 (H).

[29] In conclusion, the facts show that the 2021 and 2022 ZEC Accounts were audited and the results published. In addition, the 2023 Account was at the time of publishing being audited. My view is that the applicant takes issue with the way the ZEC Account was audited and published. However, this court cannot, on the facts of this case, interfere with the respondent's discretion in this regard. In other words, this court can order the respondent to audit the account of ZEC, but not how to carry out the audit. This court does not have power to supervise the Auditor General. It can only interfere where it is shown that the Auditor General has violated the principle of legality. Critical facts on which the case is relied are denied with substantiation. It is for these reasons that the court is not persuaded to exercise its discretion in granting declaratory relief sought. This is not a proper case for the court to

exercise its discretion to grant declaratory relief. It is for these reasons that this application cannot succeed.

[30] The general rule regarding costs is that costs should follow the event, unless there are good grounds for departing from this rule. In the circumstances, and on the objective facts of this case, good grounds have been shown to exist to depart from the general rule regarding costs. This is so because the applicant, a citizen, sought to vindicate the law and legality. Through the institution of the courts, public officials can be called upon to account to citizens for their decisions. This litigation was launched for a noble cause, to ensure that the Auditor General, in the execution of her public function, abides by the requirements of the law. It cannot be said that the litigation was frivolous or vexations, or manifestly inappropriate or that the conduct of the applicant deserves censure. It was indeed a serious attempt to vindicate the law, though unsuccessful; there is no basis to mulct the applicant with an order of costs. Otherwise, an order of costs in such a case will cause fear on litigants intending to hold public officials accountable and to vindicate the law. It is for these reasons that a no cost order is warranted in this matter.

In the result, it is ordered as follows:

The application is dismissed with no order as to costs.

Tendai Biti Law, applicant's legal practitioners
Makuwaza & Gwamanda Attorneys, respondent's legal practitioners